

Arbitration Agreement. (Brittain Decl., Ex. A.)

Under the FAA, courts must stay an action where “the issue involved in such suit or proceeding is referable to arbitration under an arbitration agreement.” (9 U.S.C § 3.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 [“the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court here would exercise its inherent authority to issue a stay pending the completion of binding arbitration.

Plaintiff’s opposition is silent as to Defendant’s request for a stay. The Court finds good cause to stay this action in granting Defendant’s Motion to Compel Arbitration.

Conclusion

Defendant’s motion to compel arbitration is **GRANTED**. The Court orders the Parties to submit their dispute to arbitration in accordance with the Arbitration Provision in the subject Lease Agreement. The Court orders this matter to be **STAYED** in full, pending conclusion of the arbitration.

The Court sets a Case Management Conference (CMC) / Arbitration Status Review **on March 23, 2027, in Dept. 34 at 8:30 a.m. Parties are ordered to file a joint statement on the status of the arbitration not less than ten (10) court days prior to the CMC.** Parties may appear at the CMC by Zoom.

13. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BENTON, MERISSA NICHOLE
TENTATIVE RULING:

The hearing on this motion is **CONTINUED** by the Court to November 9, 2026, 9:00 a.m., in Department 34.

14. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
***HEARING ON MOTION IN RE: TO STRIKE**
FILED BY: BENTON, MERISSA NICHOLE
TENTATIVE RULING:

The hearing on this motion is **CONTINUED** by the Court to November 9, 2026, 9:00 a.m., in Department 34.

15. 9:00 AM CASE NUMBER: C26-02341
CASE NAME: JEFFREY RONALD MARSHALL VS. CITY ARMS EAST, LLC
MOTION TO APPEAR PRO HAC VICE AS TO MIRANDA HULKA FOR PLTFs
FILED BY: MARSHALL, JEFFREY RONALD
TENTATIVE RULING:

On July 30, 2026, Miranda Hulka of Quinn Emanuel Urquhart & Sullivan, LLP (“Quinn Emanuel”) filed an application for leave to appear and represent plaintiffs Jeffrey Ronald Marshall and Jeanette Rita Gurmendi (“Plaintiffs”) *pro hac vice* in this matter (the “Pro Hac Vice Application”). The application was set for hearing on September 14, 2026. The application is unopposed.

In addition, separate *pro hac vice* applications of other attorneys for Plaintiffs have also been filed and set for hearing on other dates. Those include the applications by Sophia F. Martell and Andrew Schapiro of Quinn Emanuel filed July 28, 2026 and July 30, 2026, respectively. Those applications were assigned much later hearing dates of December 7, 2026 and December 14, 2026. A further *pro hac vice* application was filed by Leigh Rome of Giffords Law Center to Prevent Gun Violence on July 30, 2026. That application was assigned a hearing date of December 14, 2026. These other pending *pro hac vice* applications are referred to herein collectively as the “Other Pro Hac Vice Applications.”

It is not clear to the Court why the Other Pro Hac Vice Applications were given different hearing dates.

In the Court’s discretion and otherwise in the exercise of the Court’s inherent authority and discretion to control the proceedings pending before it, the Court hereby advances the Other Pro Hac Vice Applications to be heard concurrently with the unopposed Pro Hac Vice Application of Miranda Hulka.

Analysis

Rule 9.40 of the California Rules of Court (“CRC”) sets forth the matters that must be addressed in an application to appear *pro hac vice* in a particular cause pending before the Court:

- (1) The applicant's residence and office address;
- (2) The courts to which the applicant has been admitted to practice and the dates of admission;
- (3) That the applicant is a licensee in good standing in those courts;
- (4) That the applicant is not currently suspended or disbarred in any court;
- (5) The title of each court and cause in which the applicant has filed an application to appear as counsel *pro hac vice* in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) The name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

CRC 9.40 (d).

The declarations in support of the Pro Hac Vice Application of Miranda Hulka as well as the Other Pro Hac Vice Applications set forth the background of each of the counsel and adequately addresses the enumerated requirements.

Disposition

The Court finds and rules as follows: